

Bruce D. Marron, M.S.

1644 SE 40th Ave

Portland, OR 97214

☎ (503) 890 5871

✉ bruce@re-generar.org

📄 www.linkedin.com/in/bruce-marron-05496191

Department of Environmental Quality

700 NE Multnomah Street, Suite 600

Portland, OR 97232

May 7, 2018

Dear Department of Environmental Quality,

On October 25, 2016 Charles R. Breyer, district judge for the Northern District of California, signed the first of three Partial Consent Decrees that avoided a courtroom trial between the US Environmental Protection Agency (EPA) and Volkswagen.¹ In the lawsuit the plaintiffs alleged that Volkswagen had violated the Clean Air Act (42 U.S.C. § 7401; the “Act”) through the installation of computer algorithms in the engine control modules (ECM) of their 2.0 liter and 3.0 liter engines that constituted prohibited defeat devices under the Act. Specifically, it was discovered by researchers at West Virginia University that when the ECM detected that a vehicle was not undergoing Federal emission testing procedures (i.e., the vehicle was running under normal road conditions), the software rendered certain emission control systems in the vehicle inoperative. This resulted in emissions of nitrogen oxides (NO_x) that exceed EPA-compliant and California Air Resources Board (CARB)-compliant levels. In some cases NO_x emissions were nearly 40 times above permissible levels. Ultimately, the EPA and Volkswagen resolved the allegations through a series of three partial settlements. The settlements are structured to provide impacted states, territories, and Indian tribes with the ability to select and implement appropriate mitigation actions which are to be funded by Volkswagen. The first partial settlement (the first Partial Consent Decree) requires Volkswagen to deposit \$2.7 billion (for the 2.0 liter violating vehicles) plus \$225 million (for the 3.0 liter violating vehicles) to an Environmental Mitigation Trust (“the Trust”). The Trust monies are available to State Beneficiaries and to Indian Tribe Beneficiaries to remediate the amount of excess NO_x emissions from the illegal vehicles. The Trust, as a set of Trust Agreements, was approved by the Court on September 19, 2017.

As a State Beneficiary of the Trust Agreements, the state of Oregon will receive approximately \$72.9 million to fund Eligible Mitigation Actions (EMAs) that reduce excess emissions of nitrogen oxides caused by the violating cars. To use these settlement funds, the state of Oregon, like all State Beneficiaries, is required to create a Beneficiary Mitigation Plan. The Plan is intended “to provide the public with insight into a Beneficiary’s high-level vision for use of the mitigation funds and information about the specific uses for which funding is expected to be requested.”² The Oregon Legislature has designated the Department of Environmental Quality (DEQ) as the lead agency for the state of Oregon and has authorized DEQ to receive and manage funds from the Volkswagen settlement. DEQ submitted its Plan to the Court-appointed Trustee in December 2017.³ DEQ has determined that its overall goals for the Environmental Mitigation Funds will be (1) to maximize benefits for vulnerable populations, e.g., low income, minority, elderly and youth; (2) to prioritize pollution reductions in areas of the state with the highest emissions of nitrogen oxides and particulate matter from diesel engines; and (3) to maximize pollution reduction cost effectiveness. These overall goals best address the air quality challenges facing Oregon. In its first set of EMAs approved by the Oregon Legislature, DEQ proposes to use approximately \$18 million to retrofit exhaust controls or replace a select number of qualifying diesel school buses (Class 4-8 School Buses, 2009 or older). DEQ anticipates that the majority of state school districts will opt for the engine or vehicle replacement of their qualifying diesel school buses rather than the installation of diesel particulate filters. Qualifying, government-owned school buses are eligible for 100% replacement costs.

Use of funds in the Trust are time-limited: Beneficiaries will have 10 years to spend out their allotments. Because of the finite nature of funding coupled with DEQ’s requirement to meet its overall goals for use of the Environmental

¹United States v. Volkswagen AG, et al., 16-cv-295, (N.D. Cal.)

²United States v. Volkswagen AG, et al., 15-md-02672-CRB, (N.D. Cal.), Appendix D, Form of Environmental Mitigation Trust Agreement, Document 2103-1

³Oregon Department of Environmental Quality. (2017) *VW Environmental Mitigation Plan for the State of Oregon*

Mitigation Funds, DEQ is recommending a competitive approach to allocate the remaining funds. Specifically, DEQ is expected to “offer at least annual solicitation opportunities over the remaining term of the Trust to select highly qualified eligible mitigation projects. Projects may be funded under authority provided by the decree among the eligible mitigation actions or under contemporary guidelines associated with EPA’s Diesel Emission Reduction Act grant program (the DERA Option). The details of DEQ’s selection process, such as the frequency of grant opportunities, weighting factors for selection criteria, and other considerations would be developed in a public rulemaking process, subject to public involvement, review and comment and adopted by rule by the Environmental Quality Commission.”⁴

The successful design and implementation of this competitive selection program for EMAs will require technical expertise. DEQ will be expected (1) to draft program guidelines governing the eligibility of potential EMA projects; (2) to field questions from eligible fund recipients and other stakeholders; (3) to solicit and incorporate public comments; (4) to draft updates to its Beneficiary Mitigation Plan; and (5) to use appropriate modeling strategies (both deterministic and stochastic) to evaluate air pollutant emissions. I can help provide this technical assistance.

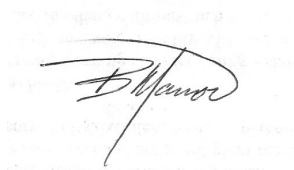
I am uniquely and ideally qualified to take on the challenges of the position of Program Analyst 2 (Job #DEQ18-3031). I have extensive experience in regulatory compliance. I spent four years translating federal, state, and US Department of Energy regulations into actionable items such as standard operating procedures and technical approach documents that demonstrated compliance. I have extensive experience working with the general public as a public school teacher and hosting public meetings under the National Environmental Policy Act. I have excellent oral and written communication skills and the ability to explain complex data analysis to diverse community partners. I have extensive experience in project design, project development and project management. I regularly write scripts in *R* and in *BUGS* for simulation modeling and statistical analysis. I have used *Python* for machine learning tasks and have familiarity with *SQL* for database query. I have extensive experience with QAQC procedures for tracking and documenting work products. I have the ability to work effectively across cultures, including professional and organizational cultures. I am bi-cultural, fluent in English and Spanish and have extensive experience working in the Latino community as well as working with underserved communities and diverse cultures. I have an MS degree in environmental chemistry.

I am a culturally connected, creative, warm-hearted, enthusiastic person with advanced regulatory compliance experience, scientific and data science training, advanced scholarship, and reliable multi-tasking experience. I am accustomed to public scrutiny and accountability. I have a client-based, customer service attitude and have a knack for tact and diplomacy. I am self-directed and comfortable working either independently or as a team member. I am ethically motivated and fully committed to public service. With experience as a graduate student and consultant I have developed a calm and organized approach to work and deadlines.

I do hope you will consider me for this very important position. And please feel free to contact me if you would like additional information or portfolio items.

Thanks so much.

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A handwritten signature in black ink, appearing to read "B. Marron", is written over a faint, light blue circular background that resembles a watermark or a stylized logo.

Bruce D. Marron, M.S.

⁴Oregon Department of Environmental Quality. (2017). *VW Environmental Mitigation Plan for the State of Oregon*, p.8